

70. **Effect of administration suit.** — The effect of an *administration suit* upon a trust for sale is that the trustees do not lose their powers, but must exercise them under the direction of the Court, and if they have a *legal power* of sale they can execute it with the sanction of the Court for the purpose of passing the legal estate. But the power, though exercised under the eye of the Court, must of course be pursued as strictly as if there were no suit, and though the trustees may be able to pass the legal estate, yet in equity no good title will be conferred as against a *cestui que trust* who was not a party to the suit, or otherwise bound by the exercise of the power. Trustees for sale, with a power of signing receipts, can, if there be no suit, convey the estate, and sign a valid discharge for the purchase-money, but if the Court and not the trustees sell the estate, the purchaser would not acquire a good title as against any *cestui que trust* who was not a party to the suit or not bound by the order. These observations must not be taken to interfere with the legal power of an *executor*, even after decree, to deal with the general personal assets of the testator (*e*).

[71. If in an administration action, or an action for the execution of the trusts of a written instrument, a sale is ordered of any *property vested in any executor, [*450] administrator or trustee, the conduct of the sale is to be given to such executor, administrator or trustee, unless the Court otherwise directs (*a*).]

SECTION II.

THE POWER OF TRUSTEES TO SIGN DISCHARGES FOR THE PURCHASE-MONEY.¹

The power of trustees to sign discharges for the purchase-money resolves itself into two questions: — First: Are the

(*e*) *Berry v. Gibbons*, 8 L. R. Ch. App. 747.

[(*a*) Rules of The Supreme Court Ord. 50, R. 10. Where there were four trustees, and one, who was also

tenant for life, was plaintiff, and the others were defendants, the conduct of the sale was given to the three defendant trustees, *Re Gardner*, 48 L. J. N. S. Ch. 644.]

¹ *Trustees' receipts.* — The rules are not as exacting in America as in England. A payment to one trustee is valid, though there are others; *Bowes v.*